

AMENDMENT AND BASIC STRUCTURE

CHANGE ROUTES → ARTICLE 368 PROCEDURE → FEDERAL RATIFICATION → CASE CHRONOLOGY → BASIC ELEMENTS → NINTH SCHEDULE → ORDINARY-LAW BOUNDARY → CURRENT CONTROLS → ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

00

STAGE 00 CHANGE WITHOUT CONSTITUTIONAL DESTRUCTION

SIMPLE MAJORITYARTICLE 368SPECIAL MAJORITYSTATE RATIFICATIONCONSTITUENT POWERADDITIONVARIATIONREPEAL

THREE ROUTES

- Simple-majority constitutional change lies outside Article 368.
- Most amendments use the dual special majority.
- Entrenched federal subjects also need ratification by at least half of States.

POWER DISTINCTION

- Ordinary legislative power changes law within competence.
- Constituent power changes constitutional text.
- Article 368 permits addition, variation or repeal.

SUBSTANTIVE LIMIT

- Every provision is amendable.
- Basic structure protects constitutional identity.
- The power to amend is not a power to destroy or replace the Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India does not adopt the United Kingdom's ordinary-legislation model for every constitutional change or the United States' high federal ratification threshold for every amendment.

01

STAGE 01 ARTICLE 368 PROCEDURE AND DUAL MAJORITY

EITHER HOUSENO PRIOR RECOMMENDATIONTOTAL MEMBERSHIPTWO-THIRDS PRESENT AND VOTINGNO JOINT SITTINGSTATE RATIFICATIONPRESIDENT SHALL ASSENT

Introduce

Each House passes both limbs

Obtain State ratification if required

President shall assent

INTRODUCTION

- Bill may originate in either House.
- Minister or private member may introduce it.
- No prior Presidential recommendation is required.

PASSAGE

- Each House separately satisfies both majority limbs.
- Failure in either House ends the Bill.
- There is no joint sitting.

COMPLETION

- Required States ratify the passed text when the proviso applies.
- States cannot amend the Bill.
- After due passage, the President shall assent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 107(5) states that a Bill pending in Rajya Sabha which Lok Sabha has not passed does not lapse merely because Lok Sabha is dissolved.

02

STAGE 02 FEDERAL RATIFICATION: THE EXACT PROVISO LIST

ARTICLES 54-55ARTICLES 73 AND 162SUPREME COURTHIGH COURTPART XI CHAPTER ISEVENTH SCHEDULESTATE REPRESENTATIONARTICLE 368

Category	Proviso subjects
Executive	54, 55, 73, 162
Judiciary	SC and HC chapters
Federal distribution	Part XI Chapter I; Lists
Federal voice	State representation; Article 368

FEDERAL ORGANS

- Election of President: Articles 54 and 55.
- Union and State executive power: Articles 73 and 162.
- Supreme Court and High Court chapters.

POWER DISTRIBUTION

- Chapter I of Part XI.
- Any Seventh Schedule List.
- Representation of States in Parliament.

SELF-ENTRENCHMENT / LIMIT

- Article 368 itself.
- At least half, not all, States ratify.
- Federal consequence alone does not trigger ratification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The list protects the federal bargain by requiring State consent where an amendment changes the Union-State constitutional compact or the States' voice in national institutions.

03

STAGE 03 CASE CHRONOLOGY: AMENDABILITY TO CONSTITUTIONAL IDENTITY

SHANKARI PRASAD (1951)SAJJAN SINGH (1964)I.C. GOLAKNATH (1967)24TH AMENDMENTKESAVANANDA BHARATI (1973)INDIRA NEHRU GANDHI V. RAJ NARAIN (1975)MINERVA MILLS (1980)WAMAN RAO (1980)I.R. COELHO (2007)

1951-65 amendability

I.C. Golaknath (1967)

1971 amendments

Kesavananda Bharati (1973)

1975-80 applications

1981-2007 Ninth Schedule

AMENDABILITY CONFLICT

- Shankari Prasad (1951) and Sajjan Singh (1964) allowed FR amendment.
- I.C. Golaknath (1967) denied that power.
- The 24th Amendment restored constituent-power language.

IDENTITY LIMIT

- Kesavananda Bharati (1973): amend every provision, damage no basic structure.
- Indira Nehru Gandhi v. Raj Narain (1975) protected democratic elections and review.
- Minerva Mills (1980) protected limited power and FR-DPSP harmony.

NINTH SCHEDULE EXTENSION

- Waman Rao (1980) fixed 24 April 1973 as cut-off.
- I.R. Coelho (2007) required impact review after the cut-off.
- Judicial review remains part of the protected identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) replaced an absolute bar on amending Fundamental Rights with a judicially enforceable limit protecting the Constitution's basic identity.

04

STAGE 04 BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND CASE-ATTRIBUTED

CONSTITUTIONAL SUPREMACYDEMOCRACYSECULARISMFEDERALISMRULE OF LAWJUDICIAL REVIEWINDEPENDENT JUDICIARYLIMITED AMENDING POWER

GOVERNMENT FORM

- Constitutional supremacy.
- Republican and democratic government.
- Free and fair elections; secularism; federalism.

LEGAL ARCHITECTURE

- Separation of powers and rule of law.
- Judicial review and judicial independence.
- Limited amending power.

RIGHTS AND BALANCE

- Dignity, liberty and equality within the rights architecture.
- Harmony between Fundamental Rights and DPSP.
- The list is illustrative, not closed or unanimously authored.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Different judges in Kesavananda Bharati (1973) proposed overlapping lists; the narrow majority ratio is the limitation on destruction of basic structure, not one unanimous catalogue.

05

STAGE 05 NINTH SCHEDULE: POST-1973 IMPACT REVIEW

ARTICLE 31BNINTH SCHEDULEFIRST AMENDMENT24 APRIL 1973WAMAN RAO (1980)I.R. COELHO (2007)PART III IMPACTREVIEWABLE

Find insertion date

Identify affected right

Test basic-structure impact

Frame narrow remedy

ORIGIN

- The First Amendment inserted Article 31B and the Ninth Schedule.
- Listing supplied a protective constitutional device.
- Placement occurs through constitutional amendment.

CUT-OFF AND TEST

- Waman Rao (1980) fixes 24 April 1973.
- I.R. Coelho (2007) reviews post-cut-off insertions.
- The inquiry asks whether protected Part III principles suffer basic-structure damage.

TRAPS

- Reviewability is not automatic invalidity.
- Listing is not permanent immunity.
- Pre-cut-off status does not erase every other constitutional issue.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 31B validates the Acts and Regulations placed in the Ninth Schedule notwithstanding inconsistency with Part III, subject to later basic-structure review of the constitutional amendment that grants that protection.

06

STAGE 06 ANJUM KADARI (2024): THE ORDINARY-STATUTE BOUNDARY

CONSTITUTIONAL AMENDMENTORDINARY STATUTELEGISLATIVE COMPETENCEPART IIICONCRETE PROVISIONNO FREE-STANDING TEST2024 INSC 831

AMENDMENT REVIEW

- Constitutional amendments face direct basic-structure review.
- The inquiry arises from Article 368 limits.
- Damage to identity is the substantive test.

ORDINARY-LAW REVIEW

- Ordinary laws are tested through competence, Part III and other provisions.
- Basic features can guide interpretation.
- They do not become a free-standing super-Article.

EXAM CORRECTION

- Identify Article X embodying the feature.
- Do not invalidate a statute only through an undefined structural slogan.
- Anjum Kadari (2024) supplies the current boundary.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal cases may use separation of powers and judicial independence, but the statutory defect should be connected to Articles governing judicial review, equality, court substitution or another express constitutional command.

07

STAGE 07 CURRENT CONTROLS AND THE JUDICIAL-SUPREMACY DEBATE

106TH AMENDMENTS.O. 1922(E)ARTICLE 334ACOMMENCED NOT OPERATIONAL131ST BILLDEFEATED PROPOSALJUDICIAL REVIEWCOUNTER-MAJORITARIAN

106TH AMENDMENT

- S.O. 1922(E) commenced the framework on 16 April 2026.
- Article 334A still requires census publication and delimitation.
- Commencement does not mean operational reservation.

131ST BILL

- The 2026 Bill was negated in Lok Sabha.
- It illustrates dual-majority arithmetic.
- It is not law, precedent or a current seat ceiling.

EVALUATION

- Identity review protects future democracy and limited government.
- Critics stress uncertainty and judicial supremacy.
- Discipline requires text, precedent, actual damage and narrow remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Although the 106th Amendment commenced, Article 334A postpones operational reservation until post-commencement census figures are published and delimitation is completed.

08

STAGE 08 FINAL SYNTHESIS: TRAPS, PYQS AND ANSWER SPINE

ARTICLE 368DUAL MAJORITYSTATE RATIFICATIONCASE CHAINBASIC ELEMENTSNINTH SCHEDULEANJUM BOUNDARYMAINS SPINE

PRELIMS CONTROL

- No joint sitting; President shall assent.
- Ratification applies to the exact proviso list.
- Basic structure is non-exhaustive; post-1973 listing is reviewable.

PYQ ROUTES

- 2 Mains and 8 Prelims are verified.
- 2024 Q66 official local key is D.
- 2025 Q58 official local key is A; older keys remain inferred.

MAINS LADDER

- Distinguish the three change routes.
- State exact procedure and case chronology.
- Apply Ninth Schedule and ordinary-law boundaries.
- Evaluate flexibility, federal consent and judicial review.

MECHANISM / VERDICT — A complete answer separates procedure from substantive identity, applies exact doctrine and ends with a qualified flexibility-versus-rigidity verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The power is nevertheless limited: an amendment cannot damage, destroy or abrogate the Constitution's basic structure or framework.

E

EXTRA OPTIONAL ENRICHMENT: AMENDMENT VERSUS REPLACEMENT

OPTIONAL ONLYCONSTITUTIONAL IDENTITYREPLACEMENTCOMPARATIVE DOCTRINEASYMMETRIC RATIFICATION

ENRICHMENT

- Amendment preserves legal continuity; replacement claims a new constituent foundation.
- Comparative systems use text, eternity clauses or judicial doctrine.

USE WITH DISCIPLINE

- Comparative analogy cannot replace Indian cases.
- State ratification remains textually limited.
- Add only after the full Indian core is secure.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and remains subordinate to Article 368, Indian case law, current controls and PYQ analysis.